

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HJR1067 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Ryan Eaves

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR
HOUSE JOINT
RESOLUTION NO. 1067

By: Eaves

FLOOR SUBSTITUTE

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to Section 2 of Article XXV-A of the Constitution of the State of Oklahoma; allowing the State of Oklahoma not cover Medicaid expansion if federal financial participation drops below ninety-percent matching; providing for contingency based upon certain voting outcome; ordering a legislative referendum; providing for contingency based on federal Medicaid; ordering a special election; providing ballot title; and directing filing.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for their approval or rejection, as and in the manner provided by law, the following proposed amendment to Section 2 of Article XXV-A of the Constitution of the State of Oklahoma to read as follows:

1 Section 2. A. In addition to those otherwise eligible for
2 medical assistance under Oklahoma's Medicaid program, the State
3 shall provide medical assistance under Oklahoma's Medicaid program
4 to Low Income Adults.

5 B. No greater or additional burdens or restrictions on
6 eligibility or enrollment shall be imposed on persons eligible for
7 medical assistance pursuant to this Article than on any other
8 population eligible for medical assistance under Oklahoma's Medicaid
9 program.

10 C. If the federal financial participation is less than ninety
11 percent (90%) for Medicaid expansion, the Oklahoma Legislature may
12 decide to not cover the additional costs to the state.

13 D. If the State Question contained in Enrolled House Bill No.
14 4440 of the 2nd Session of the 60th Oklahoma Legislature is approved
15 by the people, the provisions of this section shall not become
16 operative as law.

17 SECTION 2. Pursuant to Section 3 of Article V of the Oklahoma
18 Constitution, there is hereby ordered the following legislative
19 referendum which shall be filed with the Secretary of State and
20 addressed to the Governor of the state, who shall submit the same to
21 the people for their approval or rejection at the election to be
22 conducted on August 25, 2026.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 7402 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. In addition to those otherwise eligible for medical assistance under Oklahoma's Medicaid program, the State shall provide medical assistance under Oklahoma's Medicaid program to Low Income Adults.

B. No greater or additional burdens or restrictions on eligibility or enrollment shall be imposed on persons eligible for medical assistance pursuant to this Article than on any other population eligible for medical assistance under Oklahoma's Medicaid program.

C. If the federal financial participation is less than ninety percent (90%) for Medicaid expansion, the Oklahoma Legislature may decide to not cover the additional costs to the state.

SECTION 4. The Ballot Title for the proposed Constitutional amendment as set forth in SECTION 1 of this resolution and the statutory enactment contained in Section 3 of this measure shall be in the following form:

BALLOT TITLE

Legislative Referendum No. _____ State Question No. _____

THE GIST OF THE PROPOSITION IS AS FOLLOWS:

This measure amends the Oklahoma Constitution. The measure amends Section 2 of Article 25A by allowing the State of

Oklahoma to not cover the Medicaid expansion if the federal financial participation drops below ninety percent (90%) matching. If another State Question contained in Enrolled House Bill No. 4440 of the 2nd Session of the 60th Oklahoma Legislature becomes the law, this change in the Constitution would not become the law. This measure would also enact a statute that is almost identical in wording to Section 2 of Article XXV-A of the Oklahoma Constitution. This section relates to Medicaid coverage. It would allow the Legislature to make a choice about state Medicaid funding based on changes in Medicaid made at the federal level.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES

AGAINST THE PROPOSAL — NO

SECTION 5. A special election is hereby ordered to be held throughout the State of Oklahoma on the date of August 25, 2026, at which time the proposed amendment to the Constitution of the State of Oklahoma, as set forth in SECTION 1 of this measure, shall be submitted to the people of Oklahoma for their approval or rejection as and in the manner provided by law.

SECTION 6. The Chief Clerk of the House of Representatives, immediately after the passage of this measure, shall prepare and file one copy thereof, including the Ballot Title set forth in

1 SECTION 4 hereof, with the Secretary of State and one copy with the
2 Attorney General.

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